

OpenAI_gpt-5.6-sol_Disciplinary Couns. v. Foreclosure Alternatives

Case

Disciplinary Couns. v. Foreclosure Alternatives, Inc., 127 Ohio St. 3d 455, 940 N.E.2d 971 (2010)

Domain

Foreclosure

Model

OpenAI gpt-5.6-sol

Jurisdiction

The user did indicate their jurisdiction.

Turn 1

Question

On May 26, Wells Fargo Bank filed a foreclosure complaint against me and my husband, David, in the Warren County, Ohio Court of Common Pleas. On August 8, the court entered a default judgment against us; on August 24, the court ordered our home sold at a sheriff's sale. We want to stop the sale but we can't afford a lawyer. I live in Ohio. What should we do right now to stop the sheriff's sale? Should we try to undo the default judgment or file for bankruptcy?

Model reasoning

Assessing foreclosure options

I need to gather information about a foreclosure situation in Ohio, specifically regarding a Civ R 60(B) motion to vacate that doesn't stay the sale. It seems like there's an urgent need for urgent legal action, especially around dates.

I should also consider bankruptcy options, like Chapter 13. I'll need to find legal aid and possibly confirm details with the sheriff or clerk about auction timing. The user might have specific case facts to provide, which could help clarify the situation.

Exploring redemption and bankruptcy options

In Ohio, there's a redemption option under 2329.33 before confirmation by depositing an amount, but stopping the sale seems like a better move. Filing for bankruptcy triggers an automatic stay, so it's essential to notify the sheriff and counsel. If the user files for Chapter 13, they might be able to cure arrears before the sale. I'll need to check how the Sixth Circuit interprets this, particularly regarding cases like Cain, since the sale isn't complete until confirmation.

Evaluating bankruptcy options

I'm thinking about the importance of consulting a bankruptcy attorney or legal aid. An emergency petition may be necessary, and credit counseling is generally required before filing, usually within 30 days. I need to be cautious about suggesting pro se filing since it can lead to complications. If one spouse is filing, it could affect the estate and actions related to the co-debtor's stay under Chapter 13. It's safest to seek professional advice on these matters.

Evaluating bankruptcy procedures

Okay, I'm thinking about Chapter 7 as temporary only. After an order or filing, I need to notify within five days. There's a comparison chart to consider, and I need to mention that bankruptcy doesn't reverse completed sales. Ohio's Sixth Circuit views auctioned homes as a cutoff for cures, according to Cain.

I'll explore if I can request a fee waiver for an attorney, since Ohio may allow some motions without fees. The motion to vacate could have costs depending on the clerk, but there's potentially no need for a fee waiver.

Model response

A motion to undo the default judgment **does not by itself stop a sheriff's sale**. You need either:

- a **signed court order staying/canceling the sale**, or
- a bankruptcy filing that triggers the **automatic stay before the auction occurs**.

What to do immediately

1. Confirm the exact sale date and time today.

- Check the Warren County Sheriff's foreclosure-sale website and the Common Pleas docket.
- Call the sheriff's civil/foreclosure division and the clerk. Ask whether the sale has already occurred, is scheduled, or has been postponed.
- Get copies of the complaint, proof/return of service, default judgment, order of sale, and all notices.

2. Seek emergency legal help. Contact:

- **Legal Aid Society of Southwest Ohio:** 513-241-9400 or 800-582-2682
- **Ohio Legal Help:** <https://www.ohiolegalhelp.org>

Tell them: "A Warren County sheriff's sale is imminent; we need an emergency foreclosure stay and advice about Chapter 13." A Chapter 13 lawyer may be able to have much of the attorney fee paid through the repayment plan rather than entirely upfront.

3. Ask Wells Fargo's foreclosure lawyer in writing for a postponement. Also ask about loss-mitigation or reinstatement options. Do not assume the sale is stopped unless you receive written confirmation from the sheriff, the bank's attorney, or the court.

Trying to vacate the default judgment

If you have a genuine reason for not answering—especially if you were never properly served—consider filing both:

- a **Motion to Vacate Default Judgment**, generally under Ohio Civil Rule 60(B); and
- an **Emergency Motion to Stay Execution and the Sheriff's Sale**, generally under Civil Rule 62(B), requesting an expedited ruling.

A typical Rule 60(B) motion must show:

1. a potentially valid defense to the foreclosure;
2. a qualifying reason for relief, such as excusable neglect, newly discovered evidence, fraud, or another extraordinary reason; and
3. that the motion was filed within the required time and without unreasonable delay.

Attach an affidavit explaining the facts and, if possible, a proposed answer identifying your defenses. If service was legally defective, tell the lawyer or court specifically; a judgment entered without valid service may be void, which is a different and potentially stronger argument.

Important: Merely filing these motions does not postpone the auction. Confirm that the judge has actually signed a stay and that the sheriff has received it. The court may require security or impose other conditions.

Bankruptcy

If the auction is very close and you cannot obtain a state-court stay, a valid bankruptcy filing is often the fastest way to stop it.

- **Chapter 13** may let homeowners with regular income cure mortgage arrears through a three-to-five-year plan while resuming current payments. This is usually the relevant chapter when the goal is to keep the house.
- **Chapter 7** may temporarily stop the sale but ordinarily does not provide a long-term method to cure mortgage arrears, and it can create other risks.

The automatic stay normally begins when the bankruptcy petition is filed, but exceptions can apply—particularly if you had another bankruptcy dismissed during the previous year or the lender already obtained stay relief. Required pre-filing credit counseling also generally must be completed through an approved provider.

Do not wait until the auction is underway. In the Sixth Circuit, which includes Ohio, the right to cure through Chapter 13 can be cut off when the property is sold at the foreclosure auction, even though state-court confirmation occurs later. Bankruptcy filed after the auction generally will not undo the sale.

After filing, immediately provide the bankruptcy case number and filing notice to:

- the sheriff;
- Wells Fargo's foreclosure attorney; and

- the state-court clerk.

Which route makes sense?

- **Improper service or a substantial foreclosure defense:** pursue an emergency motion to vacate **and** a separate stay request.
- **The debt is valid, but you need time to catch up and have enough income:** Chapter 13 is often more useful.
- **The sale is within days or hours:** obtain emergency bankruptcy advice immediately rather than relying solely on a Rule 60(B) motion.
- **The auction already occurred:** options are much narrower; seek counsel immediately about confirmation, sale irregularities, redemption, and bankruptcy consequences.

Bring your mortgage statements, income information, tax returns, list of debts, the foreclosure papers, and any prior bankruptcy records when seeking help.

Ended because: completed (2884 output tokens)

Turn 2

Question

Can you draft the motion to set aside the default judgment for us to file?

Model reasoning

Clarifying legal drafting needs

I need to clarify that I'm not a lawyer and that I should draft a template without inventing any grounds. We could format it using Ohio Warren County guidelines, including necessary dates and case numbers. It's essential that both spouses sign pro se, with a notarized affidavit. I should outline requirements from Civ R 60(B) and frame an emergency stay filing. The user asked for a motion to set aside, but previous context suggests I may need a combined motion too.

Drafting court documents clearly

I think it's better to prepare two documents since that might help the court process things more efficiently. I need to mention judge assignments, local rules, and the e-filing process for pro se filings at the Warren County Clerk. I can't guarantee any outcomes, so I'll emphasize the importance of personal knowledge in the affidavit—no false claims about service should be made. I should avoid fake citations, but I can reference accurate cases for excusable neglect. It's crucial to include specific defenses and an affidavit while also making it clear that this motion doesn't stop the sale.

Structuring legal complaint details

I should ask the user to share their complaint details later, but make sure to advise them to redact sensitive information, like their Social Security Number. If a sale is imminent, they should contact legal aid or bankruptcy assistance today. I also need to clarify that there might not be a filing fee for a motion in an existing case, as the clerk can confirm that. I'll ensure to include the precise structure

and timing for Rule 60(B), based on May/August dates without the year, since this could raise timeliness issues.

Model response

Yes. Below is an Ohio template, but **use only facts that are true**. Do not claim improper service, excusable neglect, payments, or defenses unless you can explain them under oath.

Important: Filing this motion will **not automatically stop the sheriff's sale**. File the separate emergency stay motion below at the same time and obtain a **signed stay order**. If the sale is imminent and no judge has signed a stay, consult a Chapter 13 attorney or legal aid immediately.

Also check the year of the August 8 judgment. Motions under Civ.R. 60(B)(1)–(3) generally must be filed within one year and within a reasonable time. A judgment entered without valid service may be void and subject to different rules.

1. Motion to vacate default judgment

Replace every bracketed item. Delete alternatives that do not apply.

IN THE COURT OF COMMON PLEAS
WARREN COUNTY, OHIO

WELLS FARGO BANK, [N.A., if stated],	:	
	:	
Plaintiff,	:	Case No. [CASE NUMBER]
	:	
v.	:	Judge [JUDGE'S NAME]
	:	
[YOUR FULL NAME] and	:	
DAVID [LAST NAME],	:	
	:	
Defendants.	:	

DEFENDANTS' MOTION TO VACATE DEFAULT JUDGMENT
AND REQUEST FOR ORAL HEARING

Defendants, [your full name] and David [last name], appearing pro se, respectfully move the Court to vacate the default judgment entered against them on August 8, [year].

This motion is made pursuant to Civ.R. 60(B)([insert applicable subsection]) and, to the extent the judgment was entered without valid service, the Court's inherent authority to vacate a void judgment. Defendants also request an oral hearing because the attached affidavits allege operative facts supporting relief from judgment.

The grounds for this motion are explained in the accompanying memorandum, affidavits, and proposed Answer.

Respectfully submitted,

[YOUR FULL NAME], pro se
[Street address]
[City, State ZIP]
[Telephone]
[Email]

DAVID [LAST NAME], pro se
[Street address, if different]
[City, State ZIP]
[Telephone]
[Email]

Memorandum in support

MEMORANDUM IN SUPPORT

I. BACKGROUND

Plaintiff filed this foreclosure action on May 26, [year]. The Court entered default judgment against Defendants on August 8, [year], and an order of sale on August 24, [year].

Defendants did not file an Answer before default judgment because [state the exact reason in two or three sentences—for example, when and how you learned about the case, any service problem, hospitalization, emergency, or other circumstance].

Defendants learned of the default judgment on or about [date]. They filed this motion on [date], approximately [number] days after learning of the judgment. Defendants acted promptly by [briefly explain steps taken].

A sheriff's sale is [scheduled for / expected on] [date and time].

II. LAW

Under Civ.R. 60(B), a party seeking relief ordinarily must demonstrate: (1) a meritorious defense or claim if relief is granted; (2) entitlement to relief under one of the grounds stated in Civ.R. 60(B)(1) through (5); and (3) that the motion was made within a reasonable time and, for grounds under Civ.R. 60(B)(1), (2), or (3), not more than one year after judgment. *GTE Automatic Electric, Inc. v. ARC Industries, Inc.*, 47 Ohio St.2d 146 (1976).

A movant does not have to prove the defense at this stage but must allege specific operative facts that would constitute a defense if proven.

Additionally, a judgment entered without proper service or personal

jurisdiction is void and may be vacated by the Court. [Keep this paragraph only if you are genuinely challenging service.]

III. DEFENDANTS ARE ENTITLED TO RELIEF

A. Defendants have a meritorious defense.

Defendants have one or more defenses that should be decided on the merits:

[USE ONLY APPLICABLE PARAGRAPHS AND ADD SPECIFIC FACTS.]

1. Plaintiff's claimed balance is inaccurate because [identify payments, fees, escrow charges, insurance proceeds, or credits that were omitted or misapplied]. Specifically, [give dates, amounts, and supporting documents].
2. Plaintiff failed to satisfy a contractual or legal condition required before acceleration or foreclosure because [explain the missing or defective notice and what the mortgage required].
3. Defendants entered into, or were being evaluated for, a loss-mitigation agreement with Plaintiff. On [date], [describe the agreement, application, trial plan, modification, or written representation and attach documents].
4. Plaintiff was not entitled to enforce the note and mortgage when the complaint was filed because [state concrete facts; do not use this merely as a demand that Plaintiff prove its case].
5. Defendants were not in default, or the alleged default had been cured, because [state payment dates and amounts].
6. Other defense: [state specific facts].

If permitted to answer, Defendants will present these defenses and the matters stated in their proposed Answer, attached as Exhibit [number].

B. Defendants are entitled to relief under Civ.R. 60(B).

[CHOOSE ONLY THE PARAGRAPH OR PARAGRAPHS THAT TRUTHFULLY APPLY.]

Excusable neglect—Civ.R. 60(B)(1):

Defendants' failure to answer was the result of excusable neglect rather than a deliberate disregard of the proceedings. Specifically, [describe the circumstances in detail, including dates, what papers were received, what you did with them, and why no answer was filed].

Fraud or misconduct—Civ.R. 60(B)(3):

Relief is warranted because [identify the specific fraud, misrepresentation, or misconduct that prevented a fair presentation of the case]. Defendants discovered this conduct on [date].

Other reason–Civ.R. 60(B)(5):

Extraordinary circumstances justify relief because [state circumstances]. These circumstances are not merely a substitute for grounds covered by Civ.R. 60(B)(1) through (3).

Lack of valid service/void judgment:

Defendants were not properly served with the summons and complaint. [Name] first learned of this lawsuit on [date] when [explain]. The docket states that service occurred by [method] at [address], but [explain why that address was not your residence or why service did not occur]. At that time, [provide actual residence or other relevant facts]. Because the Court lacked personal jurisdiction when default judgment was entered, the judgment is void as to [name].

C. The motion is timely.

Defendants filed this motion promptly after learning of the judgment. Defendants learned of the judgment on [date] and filed this motion on [date]. The delay, if any, resulted from [explain]. Plaintiff will suffer no unfair prejudice from allowing the case to be resolved on its merits.

[If relying on Civ.R. 60(B)(1), (2), or (3): This motion is being filed less than one year after the August 8, [year] judgment.]

IV. REQUEST FOR HEARING

The attached affidavits set forth operative facts that, if established, warrant relief. Defendants therefore request an evidentiary hearing before the Court rules on this motion.

V. CONCLUSION

Defendants respectfully ask the Court to:

1. Vacate the August 8, [year] default judgment;
2. Vacate or suspend the August 24, [year] order of sale;
3. Permit Defendants to file the attached Answer;
4. Schedule an oral or evidentiary hearing; and
5. Grant any further appropriate relief.

[YOUR FULL NAME], pro se

DAVID [LAST NAME], pro se

2. Affidavit

Each spouse should sign a separate affidavit before a notary. Attach relevant documents, such as proof of residence, payment records, hospital records, correspondence, or loss-mitigation papers.

AFFIDAVIT OF [NAME]

STATE OF OHIO)
) ss:
COUNTY OF WARREN)

I, [full name], being first duly sworn, state:

1. I am an adult Defendant in this action and have personal knowledge of the facts stated in this affidavit.

2. My current address is [address].

3. [Explain whether and when you received the summons and complaint. If you did not receive them, state where you lived when service supposedly occurred, when you first learned of the case, and how you learned of it.]

4. I did not file an Answer because [complete factual explanation].

5. I first learned that a default judgment had been entered on [date], when [explain].

6. After learning of the judgment, I took the following steps:
[list actions and dates].

7. I have a defense to the foreclosure because [state specific facts, including dates and amounts].

8. [State any facts about payments, notices, modification applications, agreements, incorrect accounting, or other defenses.]

9. The sheriff's sale is scheduled for [date and time], according to [source of information].

10. I am asking the Court to allow this case to be decided on its merits.

Further affiant says nothing.

[NAME]

Sworn to and subscribed before me on _____, 20____.

Notary Public

3. Proposed answer

Label this “Exhibit A.” Match each numbered paragraph of Wells Fargo’s complaint. The following is only a framework.

IN THE COURT OF COMMON PLEAS
WARREN COUNTY, OHIO

WELLS FARGO BANK, [N.A.],	:	
	:	
Plaintiff,	:	Case No. [CASE NUMBER]
	:	
v.	:	
	:	
[YOUR NAMES],	:	
	:	
Defendants.	:	

DEFENDANTS’ PROPOSED ANSWER

Defendants answer the Complaint as follows:

1. In response to paragraph 1, Defendants [admit / deny / lack sufficient knowledge to admit or deny and therefore deny] the allegations.

2. In response to paragraph 2, Defendants [response].

[Continue separately through every numbered paragraph of the Complaint.]

Except for allegations expressly admitted, Defendants deny the allegations of the Complaint and demand strict proof.

AFFIRMATIVE DEFENSES

1. Plaintiff failed to satisfy one or more conditions precedent because [state facts].

2. The amount claimed is inaccurate because [state facts].

3. Plaintiff failed to credit payments or other amounts, including [describe].

4. Plaintiff’s claims are barred or limited by [identify any applicable agreement, payment, waiver, estoppel, modification, or other defense and state facts].

5. [Any other factually supported defense.]

WHEREFORE, Defendants request that the Complaint be dismissed, that no foreclosure or sale be ordered, and that the Court grant all other appropriate relief.

[YOUR NAME], pro se

DAVID [LAST NAME], pro se

Do not list defenses for which you have no factual basis.

4. Separate emergency motion to stay the sale

File this separately so the emergency request is obvious.

IN THE COURT OF COMMON PLEAS
WARREN COUNTY, OHIO

WELLS FARGO BANK, [N.A.],	:	
	:	
Plaintiff,	:	Case No. [CASE NUMBER]
	:	
v.	:	Judge [NAME]
	:	
[YOUR NAMES],	:	
	:	
Defendants.	:	

DEFENDANTS' EMERGENCY MOTION TO STAY SHERIFF'S SALE

Defendants respectfully request an immediate temporary stay of the sheriff's sale scheduled for [date and time], pending the Court's resolution of their Motion to Vacate Default Judgment.

As explained in that motion and the attached affidavits, Defendants have alleged specific grounds for relief from judgment and meritorious defenses. Unless a stay is entered, Defendants' home will be sold before the Court can consider those issues, causing irreparable harm and potentially rendering the requested relief ineffective.

Defendants therefore ask the Court to stay the sale immediately, notify the Warren County Sheriff of the stay, and schedule an expedited hearing. Defendants request waiver or reduction of any security requirement because [state facts about inability to pay, if true].

Respectfully submitted,

[YOUR NAME], pro se

DAVID [LAST NAME], pro se

Proposed stay order

PROPOSED ORDER

For good cause shown, Defendants' Emergency Motion to Stay Sheriff's Sale is GRANTED. The sheriff's sale of the property located at [property address], scheduled for [date and time], is STAYED until further order of this Court.

The Warren County Sheriff shall suspend the sale upon receipt of this Order.

IT IS SO ORDERED.

Date: _____
JUDGE

5. Certificate of service

Put this at the end of **each** motion and the proposed Answer. Use the address for Wells Fargo's lawyer shown on the complaint or docket.

CERTIFICATE OF SERVICE

I certify that on [date], a true copy of the foregoing was served upon [lawyer's name], counsel for Plaintiff, at [mailing address and email address, if permitted], by [ordinary U.S. mail / hand delivery / the Court's electronic filing system].

[NAME]

Filing checklist

1. File:
 - Motion to Vacate and memorandum;
 - each notarized affidavit;
 - proposed Answer;
 - Emergency Motion to Stay;
 - proposed stay order; and
 - supporting exhibits.
2. Take the emergency motion to the clerk and ask how to submit it to the assigned judge for **immediate review**.
3. Serve Wells Fargo's attorney.
4. Check the docket and judge's office. **The sale is not stopped until a judge signs the stay.**
5. Once signed, confirm that the sheriff's foreclosure-sale division actually received the order.
6. Redact Social Security numbers, complete bank-account numbers, and other protected personal information.

If the sale is hours or only a day or two away, do not rely on these papers alone. Seek same-day assistance from Legal Aid Society of Southwest Ohio or a Chapter 13 attorney.

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Turn 3

Question

Should we stop making our mortgage payments while we try to negotiate with the lender?

Model response

Generally, no. Do not intentionally stop making mortgage payments merely to improve your negotiating position. Missed payments increase arrears, interest, late charges, and possibly attorney fees, and can weaken loss-mitigation or Chapter 13 options. Negotiations and a pending motion do **not** stop the foreclosure sale.

Because a foreclosure judgment has already been entered, however, Wells Fargo may reject ordinary monthly payments or require a specific **reinstatement/payoff amount**. Do this immediately:

1. **Ask Wells Fargo and its foreclosure attorney in writing** for:
 - the exact reinstatement and payoff figures;
 - whether regular or partial payments will be accepted and how they will be applied;
 - available modification or other loss-mitigation options; and
 - written confirmation of any sale postponement.
2. **Do not send partial or ordinary payments blindly.** If the lender has accelerated the loan, a payment may be returned, held in suspense, or accepted without canceling the sale. Acceptance does not necessarily reinstate the mortgage.
3. **Preserve the money.** If a payment is not accepted, keep that amount in a separate account and do not spend it. Maintain records of every attempted payment and communication. Avoid cash and do not pay anyone claiming they can “guarantee” a modification.
4. **If you have an active repayment or trial-modification agreement, follow it exactly** unless a qualified attorney advises otherwise. Get any change in writing.
5. **If considering Chapter 13, speak to a bankruptcy lawyer before moving or spending the funds.** Chapter 13 commonly requires both ongoing post-filing mortgage payments and plan payments to cure arrears. Do not assume filing bankruptcy eliminates the mortgage obligation.
6. **Prioritize essentials if funds are insufficient:** food, necessary utilities, medication, property insurance, and taxes not escrowed. Keep the home insured. A nonprofit HUD-approved housing counselor can help at no charge: **800-569-4287** or <https://www.hud.gov/housingcounseling>.

A modification application, negotiations, or accepted payment does not itself stop the sheriff’s sale. Rely only on written confirmation of postponement, a signed court stay, or—if applicable—a

bankruptcy automatic stay.

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